

Background

This is an employment and wrongful termination case whereby Plaintiff Jose Antonio Gonzales Marquez ("Plaintiff") alleges that his employers, Defendants, subjected him to discrimination during his employment and retaliated against based on his race. Plaintiff also contends that Defendants denied him rest breaks, overtime pay and did not pay him all of this wages for time worked.

Counsel Eliyahu Y. Kaplunovsky filed this Motion to Be Relieved as Counsel on December 2, 2026, supported by his declaration claiming that "JRT Trucking, LLC and its managing members have refused to cooperate with Mr. Kaplunovsky [] and has severely affected Attorney's ability to adequately represent JRT." Further, Counsel claims that "Defendants have breached their retainer agreement with the firm and refuse to pay for the services completed; Mr. Kaplunovsky and the firm have conveyed to Defendants that these breaches in multiple conversations, and offered solutions. However, the Defendants have failed to uphold their obligations to pay for the firm's services."

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Plaintiff's Counsel. The Court acknowledges that the prejudice to the Parties is minimal, as there is ample time for Defendant to retain trial counsel. Furthermore, there is no trial date set in this case.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. The makes the following orders:

1. This motion is **granted**.
2. The Court will execute the two Proposed Orders Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on December 2, 2025. The withdrawal is effective immediately.
3. Defendant's Counsel is ordered to serve a copy of the Order (MC-053) to Defendants by mail at their last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. Defendant's counsel shall file a proof of service form indicating that the client was served with the Court's Order (MC-053) and the Change of Address form (MC-040).

13. 9:00 AM CASE NUMBER: C23-02791
CASE NAME: JOSE ANTONIO GONZALES MARQUEZ VS. JRT FREIGHT, LLC
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: ELIYAHU Y KAPLUNOVSKY
FILED BY: MARTINEZ, LUIS
TENTATIVE RULING:

See Tentative Ruling, Line 12, above.

14. 9:00 AM CASE NUMBER: C24-00733
CASE NAME: HAMDY FAYAD VS. GAMAL AMIN
*HEARING ON MOTION IN RE: AMEND COMPLAINT FOR COMPULSORY JOINDER OF DEFENDANTS
FILED BY: FAYAD, HAMDY
TENTATIVE RULING:

Plaintiff Hamdy Fayad's motion to amend complaint is **granted as to Machine Learning and denied without prejudice as to Shahab Amin**. Plaintiff shall file and serve a second amended complaint by April 8, 2026.

In March 2024, Plaintiff filed this case. He alleges that a dispute arose between Plaintiff and Gamal Amin and Nafisa Shafy regarding the sale of a liquor store in San Francisco. Plaintiff obtained an arbitration award against Amin and Shafy for almost \$300,000. Plaintiff alleges that Amin and Shafy fraudulently transferred their assets to Shehab Amin (their son). Silverman, LLC is alleged to have owned the liquor store assets and was also involved in the fraudulent transfers. Plaintiff sued Gamal Amin, Nafisa Shafy, Shehab Amin and Silverman, LLC for fraudulent transfer and conveyance. In the original complaint, Plaintiff sued Shehab Amin as "Shehab Amin aka Shahab Amin". (FAC ¶4.)

Now, Plaintiff seeks permission to file a second amended complaint to add Shahab Amin as a separate defendant so that complaint will include both Shehab Amin and Shahab Amin. Plaintiff also seeks permission to add Machine Learning Incorporated as a defendant who is alleged to be an owner of Silverman, LLC. (Lin dec. ex. H (proposed SAC).)

Plaintiff brings this motion under Code of Civil Procedure section 389. Section 389(a) states that "[a] person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest. If he has not been so joined, the court shall order that he be made a party." (Section 389(a); see also, *Bianka M. v. Superior Court* (2018) 5 Cal.5th 1004, 1018-19.)

Defendants in a fraudulent transfer case are sometimes necessary parties. Where a personal judgment is sought, not all parties must be included in a fraudulent conveyance cause of action. (*Diamond Heights Village Assn., Inc. v. Financial Freedom Senior Funding Corp.* (2011) 196 Cal.App.4th